

HOUSE BILL 2107

By Terry

AN ACT to amend Tennessee Code Annotated, Title 63,
relative to health related boards.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 63, Chapter 7, Part 1, is amended by
adding the following as a new section:

63-7-132.

(a) Notwithstanding § 63-1-130 or another law to the contrary, when the board of
nursing considers whether to deny an application for a license to an applicant or whether
to refuse to renew a license, there is a rebuttable presumption that the board must deny
the application or refuse to renew the license if:

(1) The applicant or licensee has been convicted in the last five (5) years
of:

(A) Driving under the influence under § 55-10-401;

(B) Vehicular assault under § 39-13-106;

(C) Aggravated vehicular assault under § 39-13-115;

(D) Vehicular homicide under § 39-13-213(a)(2);

(E) Aggravated vehicular homicide under § 39-13-218; or

(F) An offense committed in another state that would constitute
any of the offenses in subdivisions (a)(1)(A)-(E);

(2) There was evidence involving an offense under subdivision (a)(1) that
the alcohol concentration in the person's blood or breath was at least twice the
limit under § 55-10-401(2); and

(3) There was evidence that an injury occurred to another person during the commission of the offense under subdivision (a)(1).

(b) If the board approves a license application or renews a license for an applicant that meets the criteria in subsection (a), then the board shall make written findings as to why the board approved or renewed the license.

(c) As used in this section, "license" means any license, registration, certification, or other authorization by the board of nursing to engage in the practice of professional nursing or another profession regulated by this chapter.

(d) The board of nursing is authorized to promulgate rules to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.